

Kifisias Avenue 1-3, 11523 Athens
T: 210 6475 600 • E: contact@dpa.gr • www.dpa.gr

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OPINION 2/2024

The Hellenic Data Protection Authority convened at the invitation of its President in a meeting at its headquarters on 6th February 2024, in order to issue an opinion on a draft law following a relevant request from the Ministry of Digital Governance. Present were the President of the Authority Konstantinos Menoudakos, as the rapporteur, and the regular members of the Authority Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigoris Tsolias. Present without voting rights were Fotini Karvela, Kyriaki Karakasi, and Konstantinos Limniotis, expert scientists, as rapporteur assistants, and Irini Papageorgopoulou, an employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

The Ministry of Digital Governance, with its letter no. Α/ΕΙΣ/824/2.2.24, sent a draft law (hereinafter: Draft Law) regarding the adoption of measures for the implementation of Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on the single market for digital services and amending Directive 2000/31/EC (Digital Services Act, hereinafter: Act), requesting the issuance of an opinion. Specifically, representatives of the Authority participated in the Working Group established under the letter no. 20296ΕΞ2023/24-04-2023 of the Ministry of Digital Governance, which aimed to coordinate actions for the adaptation of national legislation to the provisions of the Act. The Act comes into effect on 17.02.2024¹, according to Article 93 thereof. According to Article 288 TFEU, the Act has direct applicability in all member states, which are obliged to take the necessary measures to adapt their national legislation.

The aforementioned Draft Law includes provisions that establish domestic law measures for the full and effective implementation of the Act², the primary objective of which is to promote responsible and diligent behavior of providers of intermediary services³, particularly online platforms, such as social media and online marketplaces (online marketplaces, app stores), in order to ensure a safe online environment within which EU citizens can freely exercise their fundamental rights. Recognizing the increasingly significant role that online platforms have played in the economy and society in recent years, the Act imposes due diligence obligations on providers of intermediary services, depending on the nature of the services they provide and their size⁴.

1 Except for the provisions of Articles 24 paragraphs 2, 3, and 6, 33 paragraphs 3 to 6, 37 paragraph 7, 40 paragraph 13, 43, and Chapter IV, sections 4, 5, and 6, which came into effect on 16.11.2022.

2 See also the Explanatory Report of the relevant Regulatory Impact Analysis (under A.1)

3 Where, according to Article 3 point (z) of the Act, "intermediary service" may be one of the following services of the information society: i) "simple transmission": consists of the transmission, over a communications network, of information provided by a recipient of the service, or the provision of access to a communications network; ii) "temporary storage": consists of the transmission, over a communications network, of information provided by a recipient of the service, and includes the automatic, intermediate, and temporary storage of such information, which is carried out solely for the purpose of making subsequent transmission of the information to other recipients more efficient upon their request; iii) "hosting": consists of the storage of information provided by a recipient of the service, upon their request;

4 See Recitals 51-57 of the Act (Regulation on the single market for digital services and amending Directive 2000/31/EC).

With this approach, which becomes particularly evident in Chapter III of the Act, where the obligations imposed on providers of intermediary services are outlined in their entirety (Section 1), as well as according to the services they provide (Sections 2, 3, 4) and their scope (Section 5), a proportional and fair burden is achieved for all providers of intermediary digital services, and the identified problems are addressed only where they arise, without excessively burdening providers to whom these problems do not pertain. The provisions of Chapter IV regarding the implementation and enforcement of the Act also follow this spirit, which provides, among other things, for enhanced supervision of the corrective measures imposed in the event of a breach of obligations by very large online platforms or by very large online search engines, as well as the possibility of intervention by the Commission as specifically provided, particularly in Article 56 of the Act.

Moreover, citizens of the Union are exposed to increasingly significant risks online, from the dissemination of illegal content and activities to restrictions on freedom of expression and other harmful social consequences. The measures provided in this Act are expected to significantly improve this situation, as indicated in its own recitals, by providing a modern framework that effectively safeguards the rights and legitimate interests of all stakeholders, primarily the citizens of the Union. The Act introduces significant guarantees so that citizens can express themselves freely, while also enhancing user autonomy in the online environment, as well as the ability to exercise other fundamental rights, such as the right to effective remedy, the prohibition of discrimination, children's rights, and the protection of personal data and privacy online (subject to the general relevant Union legislation, as analyzed below).

Therefore, in light of the above, it follows that the Act harmonizes the rules for intermediary services in the internal market, aiming to ensure a safe, predictable, and reliable online environment, in which the dissemination of illegal content online and the social risks that may arise from the spread of misinformation or other content are addressed, and in which fundamental rights are effectively protected and innovation is facilitated.

In addition to the above, it is noted as of major importance the reservation in favor of the GDPR, Directive 2002/58/EC, and the general Union legislation for the protection of personal data, which is set forth in Article 2(4)(z) of the Act, under which the legal framework for the protection of personal data continues to interpretively permeate the issues arising from the application of the Act.

The aforementioned draft law presented to the Authority aims to adapt the existing national legislation, which is achieved through its provisions regarding:

a) the definition of the Digital Services Coordinator and the competent authorities to which supervisory powers over providers of intermediary services and enforcement of the Act are granted, as well as the regulation of their respective responsibilities (see also related obligations arising particularly from Articles 49 and 50 of the Act).

b) ensuring that orders for action against illegal content and orders for information issued by the competent judicial or administrative authorities meet the requirements of the Act in their content (see also related obligations arising particularly from Article 9 of the Act).

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γ) the establishment of a national Advisory Committee for Digital Services and the determination of its responsibilities.

δ) the establishment of a procedure for imposing proportionate and effective sanctions that may be imposed on providers of intermediary services for violations of the Act and the law proposed by this draft law (see also related obligations arising particularly from Articles 51 and 52 of the Act).

ε) the regulation of issues concerning legal protection and the right to appeal against the decisions of the Coordinator and other competent authorities.

σ) the creation of a Registry of providers of intermediary services established in Greece and the determination of the procedure and manner of its maintenance.

Specifically, Chapter A includes provisions concerning the purpose, subject matter, and definitions of the draft law. Chapter B provides for the appointment of the national Coordinator for Digital Services and the competent authorities, which are granted the power to supervise providers of intermediary

services and enforce the Act in Greece, as well as the regulation of their individual responsibilities and the framework for cooperation among them. Specifically, the National Telecommunications and Post Commission (hereinafter, EETT) is designated as the Coordinator for Digital Services, and the competent authorities are designated as the National Council for Radio and Television (hereinafter, ESR) and the Personal Data Protection Authority. Additionally, the Cyber Crime Unit of the Hellenic Police is designated as the competent authority for receiving reports of suspected criminal offenses, while a specific framework for cooperation with other authorities is provided, with special reference to the Ministry of Development. Furthermore, provisions are introduced for conducting investigations and collecting data in the context of implementing the Act, as well as the obligation of minimum content to national judicial or administrative authorities that issue, to providers of intermediary services, orders to take action against illegal content and orders to provide information. Moreover, the establishment of an Advisory Committee for Digital Services at the Ministry of Digital Governance is provided, which will serve as an advisory body on digital services issues, and its scope of responsibilities, internal structure, and operational procedures are defined, as well as the establishment of a Registry of Providers of Intermediary Services, with clarifications on the manner and details of registration therein. In Chapter C, provisions are introduced concerning the sanctions imposed in case of violations of the provisions of the Act and the proposed draft law, as well as the right to judicial appeal against regulatory decisions, against the decisions of the Coordinator or the competent authorities regarding the imposition of sanctions, and against other individual administrative decisions issued by the Coordinator or the competent authorities. Additionally, provisions are made for the preparation of annual activity reports by the Coordinator for Digital Services and for the creation and filling of new staff positions within the Coordinator for Digital Services for the needs of implementing the Act. Finally, the coverage of expenses of the EETT for the implementation of the provisions of the Act is provided, while the possibility of imposing fees by the Coordinator on providers of intermediary services is also granted.

In Chapter D, provisions are included with the necessary amendments to existing legislation, as well as the necessary authorization provisions for the implementation of the new law. In Chapter E, other regulations of the Ministry of Digital Governance are included, while in Chapter F, the commencement of the law's effectiveness is defined.

The provisions of the draft law under examination that pertain to the responsibilities of the Authority are those of Articles: a) 5 concerning the designation of the competent authorities, among which

8 According to Article 3, item a of the Act, illegal content is defined as "any information which, by itself or in connection with an activity, including the sale of products or the provision of services, does not comply with Union law or the law of any Member State, regardless of the exact subject matter or nature of that law."

9 See also the relevant Regulatory Impact Analysis of the draft law under examination.

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including the Authority, b) 6 regarding the possibility of the Authority's participation in the European Digital Services Council, c) 8 regarding the cooperation between the Coordinator and the competent authorities for the fulfillment of their duties, d) 11 regarding the Powers of the Digital Services Coordinator and the competent authorities, e) 14 concerning the Advisory Committee for Digital Services, f) 16 regarding Sanctions, g) 17 regarding the Right to Judicial Appeal, h) 18 regarding Activity Reports, i) 23 par. 6 regarding the enabling provision for the issuance of a Joint Act by the Digital Services Coordinator and the competent authorities, and j) 23 par. 7 regarding the procedure for the collection of fines and periodic monetary penalties imposed by the Authority.

The Authority, after examining the above provisions of the submitted draft law in relation to the implementing provisions of the Act, having taken into account the comments numbered G/EXE/735/01-03-2021 addressed to the Directorate of European Affairs and Bilateral Issues of the Hellenic Parliament regarding the proposal for a Regulation on the single market for digital services (Digital Services Act) and the amendment of Directive 2000/31/EC, and after hearing the rapporteur and the clarifications of the assistant rapporteurs, following a thorough discussion,

ISSUES THE FOLLOWING OPINION

A. Introductory Remarks

1.
According to the provisions of Articles 51 and 55 of the General Data Protection Regulation (EU) 2016/679 (hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), the Authority has the competence to supervise the implementation of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.
2.
According to Article 57 par. 1 point c of the GDPR and Article 13 par. 1 of Law 4624/2019, the Authority provides an opinion on any regulation that is to be included in a law or regulatory act, which concerns the processing of personal data.
3.
According to Article 67 par. 2 of Law 4624/2019, when drafting bills or regulatory acts that concern the processing of personal data by competent authorities for the purposes of Article 43 of the same law or are related to it, the opinion of the Authority is requested in a timely manner.
4.
Respect for the privacy of individuals and the protection of personal data are guaranteed both in Article 8 of the European Convention on Human Rights (ECHR) and in Convention 108/1981 of the Council of Europe for the protection of individuals from automated processing of personal data, as well as in Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.
5.
According to Article 9A of the Constitution, "Everyone has the right to protection from the collection, processing, and use, especially by electronic means, of their personal data, as provided by law. The protection of personal data is ensured by an independent authority, which is established and operates as provided by law."

B. Comments on the individual articles of the draft law

1.
Article 5 Draft Law
This provision defines the Digital Services Coordinator and the other competent authorities, which are entrusted with the supervision of the implementation and enforcement of the Act, according to Article 49 par. 1 thereof. Specifically, the Authority is designated as the competent authority for the supervision of providers of intermediary services and the enforcement of the regulations of Articles 26 par. 1 point d and 3 and 28 of the Act.
Article 26 par. 1 point d of the Act imposes on providers of online platforms that display advertisements on their online interfaces the obligation to ensure that for each specific advertisement presented to each individual recipient, they can recognize in a clear, concise, and unambiguous manner and in real-time significant information that is directly and easily accessible from the advertisement regarding the main parameters used to determine the recipient to whom the advertisement is presented and, where applicable, regarding how to change these parameters. This obligation is very important, considering the leading role that online advertising plays in the online environment, such as in relation to online platforms, where the provision of the service is often compensated through advertising revenues. Online advertising can pose significant risks, such as advertisements that constitute illegal content themselves, or provide financial incentives for the dissemination of illegal content or biased advertisements, which have implications for the equal treatment and equal opportunities of citizens or generally targeted advertisements based on potentially "profiling" the recipient of the advertisement. Therefore, recipients of the service should have direct access to information regarding the main parameters used by the provider to decide that a specific advertisement will be presented to a specific recipient. This information must provide essential explanations regarding the logic used for this purpose, including when it is based on profiling. More specifically, these explanations should include information about the method used for presenting the advertisement and, where applicable, the key profiling criteria used, as well as the means available to the recipient to modify these criteria. The risks

of profiling, especially through the technique...

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"Microtargeting" is well-known and is particularly pronounced in the context of online advertising, where the presentation to recipients of advertising services based on targeting techniques that respond to their interests can have particularly serious negative consequences and can negatively affect entire social groups in certain cases or exacerbate social ills, contributing, for example, to misinformation campaigns or introducing discrimination against certain groups.

Considering that online platforms are particularly sensitive environments for the aforementioned practices and present a higher social risk, the Union legislator has prohibited, under paragraph 3 of Article 26 of the Act, providers of online platforms from presenting advertisements to recipients of the service based on profile training, as defined in Article 4 point 4 of the GDPR, using special categories of sensitive personal data under Article 9 paragraph 1 of the GDPR. It is worth noting that the aforementioned obligations imposed on providers of online platforms apply without prejudice to other obligations that apply to them under Union law governing the protection of personal data.

Article 28 of the Act concerns the protection of minors online. Specifically, it provides that 1) Providers of online platforms accessible to minors take appropriate and proportionate measures to ensure a high level of privacy, security, and protection for minors in their service. 2) Providers of online platforms do not present advertisements on their interface based on profile training, as defined in Article 4 point 4 of the GDPR, using personal data of the recipient of the service when they know with reasonable certainty that the recipient of the service is a minor. 3) Compliance with the obligations set out in this article does not require providers of online platforms to process additional personal data in order to assess whether the recipient of the service is a minor.

The protection of minors is an important policy objective of the European Union. Digital services now continuously collect and exchange data about children, and the process of "datafication" is particularly widespread. In order to ensure the protection of minors online, the Act imposes the aforementioned obligations on providers of online platforms. The protection of minors is also a concern of the GDPR, which establishes specific protection regarding their personal data, recognizing that children may have less awareness of the relevant risks, consequences, and guarantees, and their rights concerning the processing of personal data. It emphasizes in Recital 38 that "this specific protection should apply particularly to the use of personal data for marketing purposes or for the creation of personality or user profiles and the collection of personal data concerning children when using services offered directly to a child."

The Authority welcomes the assignment of oversight of the above provisions of the Act to itself, considering that the purpose they serve is fully aligned with the Authority's mission to supervise the implementation of the GDPR.

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regulations concerning the protection of individuals against the processing of personal data.

2. Article 6

Article 6 of the Draft Law (ΣΧΝ) secures the Authority's ability, as the competent authority, to participate without voting rights, alongside the Coordinator of digital services, in the European Digital Services Council as per Article 61 of the Act, provided that the subject under consideration pertains to its operational competencies for the implementation and enforcement of the relevant provisions of the Draft Law and the Act.

3. Article 8

Article 8 provides for cooperation, mutual assistance, and the exchange of information between the Coordinator of digital services and the competent authorities, for the implementation of the Act and the provisions of the Draft Law, within the deadlines set by the Act or the proposed Draft Law, or otherwise within the deadline specified by the requesting party, in order to meet the timeframes established by the Act. In paragraph 2 of Article 8, details regarding the exchange and use of data and information between the Coordinator and the competent authorities are specified, including personal data and

information that falls under business and professional confidentiality, to the extent necessary for the fulfillment of their duties, while it is ensured, in relation to the exchanged information, that the receiving authority guarantees the same level of confidentiality as the transmitting authority. Furthermore, it is stipulated in paragraph 3 of this article that if the Coordinator examines issues related to the competencies of the competent authorities, they may request the opinion of the relevant competent authority on these matters.

In relation to the cooperation between the Coordinator and the Authority, as the competent authority under Article 5 of the Draft Law, it is emphasized that, according to the provisions of Articles 49 and 50 of the Act, the independence of the Authority in the exercise of its duties and powers, in accordance with the Act and the Draft Law, is fully secured, while the role of the Coordinator according to the Act and the Draft Law does not imply any hierarchical superiority over the Authority in the exercise of its duties.

4. Article 11 of the Draft Law

Article 11 of the Draft Law specifies the powers of the Authority as the competent authority under Article 5 of the Draft Law in the execution of its duties based on the Act. It is noted that according to the provision of Article 49 paragraph 4 of the Act, the provisions of Articles 50, 51, and 56 governing the coordinators of digital services also apply to the competent authorities designated by the member states.

Consequently, the Authority, as the competent authority responsible for overseeing providers of intermediary services and enforcing the provisions of the Act that fall within its competencies, possesses the powers outlined in paragraphs 1, 2, and 3 of Article 51 of the Act, namely powers of investigation, enforcement, and taking specific measures, as detailed in the aforementioned provision of the Act.

In order for the Authority to be able to utilize the full range of investigative powers it already possesses and exercises in the context of overseeing the implementation of provisions concerning the protection of individuals against the processing of personal data, in accordance with the GDPR and Law 4624/2019, the Draft Law provides that in the execution of its duties as the competent authority, paragraphs 1 and 2 of Article 15 of Law 4624/2019 regarding the investigative powers it possesses shall apply *mutatis mutandis*.

5. Article 14

Article 14 of the Draft Law provides for the establishment of an Advisory Committee for Digital Services at the Ministry of Digital Governance with the mission, among other things, to provide non-binding recommendations to the Ministry regarding potential legislative initiatives that could contribute to a more...

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effective implementation of the Act and the Draft Law and, in general, legislative interventions on issues related to the field of digital services. The Committee serves as an advisory body on matters of digital services, and its operation does not in any way affect the independence of the Digital Services Coordinator and the competent authorities. The Committee, which consists of nine members, includes one member from the Authority, while the others are appointed one each by the Digital Services Coordinator (EETT), the other competent authority (ESR), the Ministry of Digital Governance, the Ministry of Development, the Ministry of Justice, the General Secretariat for Communication and Information, the Cyber Crime Unit, and the National Cybersecurity Authority.

6. Article 16 of the Draft Law

Article 16 of the Draft Law regulates the process for imposing fines and periodic financial penalties and provides for the criteria for calculating the fines that the Digital Services Coordinator and the competent authorities have the power to impose on providers of intermediary services under their jurisdiction, in accordance with Article 51, paragraph 2 of the Act. Specifically regarding the Authority, it is provided that paragraphs 4 and 5 of Article 15 of Law 4624/2019 apply *mutatis mutandis*, so that the Authority can utilize the sanctioning "arsenal" it possesses based on the GDPR and Law 4624/2019. It is noted that the criteria for imposing and calculating the amount of fines are generally harmonized with the criteria for calculating fines set by the GDPR in Article 83. Furthermore, in compliance with Article

51, paragraph 2, subparagraph (d) of the Act, the Draft Law grants the Authority the power to impose periodic financial penalties on the providers of intermediary services it supervises, to ensure the cessation of the violation in compliance with an order issued in accordance with Article 51, paragraph 2, subparagraph (b) or due to non-compliance with any of the investigation orders issued in accordance with Article 51, paragraph 1 of the Act.

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Article 16 of the Draft Law also provides in paragraph 7 that the aforementioned fines and periodic financial penalties imposed by the Authority are collected in the name and on behalf of the Authority and are remitted to it. For this collection, the Authority, by decision of its President, opens a simple bank account under the account group 260 - Cash Management at the Bank of Greece, where the amounts of the fines and periodic financial penalties imposed in the exercise of its powers, as provided by the Act, will be deposited directly by those liable.

7. Article 17 of the Draft Law

Article 17 of the Draft Law specifies the right to judicial appeal that may be exercised by those affected against the decisions of both the Coordinator and the competent authorities of Article 5 of the proposed Draft Law under examination, including the decisions of the Authority. Specifically, paragraph 1 of the said article introduces a deviation from the rule of contesting the acts of the Authority by means of an annulment application before the Council of State. This deviation applies only to the Decisions of the Authority imposing the sanctions referred to in Article 16 of the proposed Draft Law, particularly the fines and periodic financial penalties imposed by the Authority in the exercise of the powers assigned to it under the Act. Therefore, against the aforementioned Decisions of the Authority, a substantive appeal is filed before the Administrative Court of Appeal of Athens – as well as against the relevant decisions of the EETT designated as the Digital Services Coordinator – as it was preferred, particularly for the sake of procedural uniformity in the field of contesting the decisions of the Coordinator and the competent authorities, which are issued in application of the Act and the proposed Draft Law, the organization of judicial protection with the provision of a legal remedy of full jurisdiction before the Administrative Court of Appeal of Athens, within the framework of which the judge may, in addition to annulment, also order the reform of the respective contested executive administrative act. Consequently, paragraph 5 of the same article provides that against the Decisions of the Administrative Court of Appeal of Athens, an application may be filed.

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of appeal before the Council of State, thereby ensuring the review of the correct application of the law by the court of first instance. Furthermore, according to paragraph 2 of Article 17 of the Draft Law, for the other individual administrative acts as well as for the regulatory decisions of the Authority as the competent body, the rule of challenging them for annulment before the Council of State is maintained. This differentiation is particularly imposed due to the legal nature of these acts, the challenge of which through a full jurisdiction remedy would entail, among other things, the constitutionally impermissible substitution of the Authority by the Judge.

Additionally, with paragraph 3 of Article 17 of the Draft Law, it is stipulated that the deadline for exercising the aforementioned legal remedies does not, in principle, have a suspensive effect regarding the respective challenged administrative acts, and it is further provided, albeit redundantly, that the execution of the challenged act may be suspended wholly or partially by a decision of the competent court issued after the filing of a suspension request according to the relevant procedural provisions. With paragraph 4 of the same article, it is stipulated as a condition for the admissibility of the discussion of substantive appeals against decisions imposing fines, the deposit with the authority that imposed them, of an amount equal to 15% of the respective imposed fine, a percentage which in any case cannot exceed the amount of two hundred thousand (200,000) euros.

8. Article 18 of the Draft Law

With Article 18 of the Draft Law, an obligation is established for the Authority as the competent body to send to the EETT, as the Coordinator of Digital Services, by the end of February of each year, the

information referred to in Article 55 of the Act and in paragraph 2 of this article of the Draft Law for the previous calendar year, and specifically the details of human and financial resources for the implementation of the proposed Draft Law and the Act, including, in cases where fees have been imposed, the fees that have been collected, the number of violations of the Act that were identified, the number and details of hearings, the number and details of sanction enforcement procedures and other measures as well as the decisions, regulations, and acts issued within the framework of the empowering provisions of Article 23 of this Draft Law. According to paragraphs 1 and 4 of the same Article 18 of the Draft Law, the Coordinator of Digital Services prepares by the end of June an activity report for the previous calendar year with the above information, which is communicated to the European Commission, to the Council of Digital Services, and to the competent authorities of Article 5 of the Draft Law, such as the Authority.

9. Article 23 of the Draft Law

Article 23 of the Draft Law contains authorizations for the regulation of details and technical or procedural issues. Among the aforementioned empowering provisions, the one concerning the Authority is provided in paragraph 6, according to which, by a joint Act of the EETT, as the Coordinator of Digital Services, of the Authority, and of the National Council for Radio and Television (ESR) as the other competent authority, after the agreement of their Plenary Sessions, every issue concerning their cooperation is regulated bindingly and in detail. Such issues include, by way of example, the coordination of data and information collection as well as their exchange, the manner of use of national information systems, or the process of receiving and transmitting incoming complaints to each authority that pertain to issues falling within the scope of the Act.

Additionally, with the provision of paragraph 7 of the aforementioned Article 23 of the Draft Law under consideration, the Minister of National Economy and Finance is authorized to issue a decision—following a decision of the President of the Authority and the submission of a relevant request by the Authority—by which the collection on behalf of the Authority of the fines and periodic monetary penalties that it will impose in the exercise of its duties within the framework of the Act and the proposed Draft Law will be assigned to the services of the Tax Administration, in cases of non-payment to the bank account of the Authority, as provided in Article 16 paragraph 7 of the Draft Law. In this way, the direct collection by the Authority of even overdue fines and periodic monetary penalties that it will impose in the exercise of its duties within the framework of the Act will be ensured.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou

CHAPTER A

PURPOSE AND OBJECTIVE

Article 1

Purpose

The purpose of this Law is to take measures for the implementation of Regulation (EU) 2022/2065 of the European Parliament and of the Council of October 19, 2022, regarding the single market for digital services and amending Directive 2000/31/EC ("Digital Services Act," hereinafter referred to as the Act) into the Greek legal order.

Article 2

Objective

The objective of this Law is to establish provisions that enable the implementation of the Act, and specifically:

1. The definition of the Digital Services Coordinator and the competent authorities to which the power of supervision over providers of intermediary services and enforcement of the Act is granted, as well as the regulation of their specific responsibilities.

2. The assurance that orders for action against illegal content and orders for the provision of information issued by the competent judicial or administrative authorities meet the requirements of the Act in their content.
3. The establishment of a Digital Services Advisory Committee and the determination of its responsibilities.
4. The determination and the process for imposing proportionate and effective sanctions that may be imposed on providers of intermediary services for violations of the Act and this Law.
5. The regulation of legal protection issues and the right to appeal against the decisions of the Coordinator and other competent authorities.
6. The creation of a Register of providers of intermediary services established in Greece and the determination of the process and manner of its maintenance.

Article 3

Definitions

1. For the purposes of this Law, the following definition applies:

Legal representative of a provider of intermediary services that does not have its main establishment in the European Union: the natural or legal person who has their main residence or is established in Greece and is designated in writing by a provider of intermediary services that does not have its main establishment in the European Union, as its legal representative in accordance with Article 13 of the Act.

2. For other terms used in this Law, Article 3 of the Act applies.

CHAPTER B

DIGITAL SERVICES COORDINATOR AND COMPETENT AUTHORITIES

Article 4

Definition of Digital Services Coordinator

The National Telecommunications and Postal Commission (E.E.T.T.) is designated as the Digital Services Coordinator pursuant to Article 49 paragraph 2 of the Act and exercises all powers and responsibilities conferred on the Digital Services Coordinator by this Law and the Act, subject to those assigned by this Law to other competent authorities.

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Article 5

Definition of Competent Authorities

The following are designated as the competent authorities for the supervision of intermediary service providers and the enforcement of the provisions of the Act mentioned below, in accordance with Article 49 paragraph 1 thereof:

1. The National Council for Radio and Television is responsible for the supervision of intermediary service providers and the enforcement of the regulations of Articles 26 paragraph 1 subparagraphs a, b, and c, and paragraph 2, and Article 28 paragraph 1 of the Act.
2. The Personal Data Protection Authority (P.D.P.A.) is responsible for the supervision of intermediary service providers and the enforcement of the regulations of Articles 26 paragraph 1 subparagraph d and 3, and Article 28 of the Act.

Article 6

Participation in the European Digital Services Council

The European Digital Services Council established by Article 61 of the Act includes the Hellenic Telecommunications and Post Commission (E.E.T.T.) as the Digital Services Coordinator with voting rights. Other competent authorities as defined in Article 5 of this document may participate in the Council alongside the Digital Services Coordinator, without voting rights, provided that the matter pertains to their specific operational competencies for the implementation and enforcement of this and the Act.

Article 7

Operation of the Digital Services Coordinator

In exercising the responsibilities of the E.E.T.T. as the Digital Services Coordinator, in accordance with the Act and this law, Articles 6 to 11 of Law 4070/2012 (A' 82) regarding its operation, the disqualifications for appointment, incompatibilities, obligations, and the disciplinary responsibility of its members shall apply.

Article 8

Cooperation between the Digital Services Coordinator and Competent Authorities

1. The Digital Services Coordinator and the competent authorities of Article 5 of this document shall cooperate closely, provide mutual assistance, and exchange all information available to them for the implementation of the Act and this document in a direct and effective manner, within the deadlines set by the Act or this law, or otherwise within the deadline specified by the requesting party, in order to meet the timeframes established by the Act.
2. The Digital Services Coordinator and the competent authorities of Article 5 may exchange and use data and information at their disposal, including personal data and information that falls under business and professional confidentiality, to the extent necessary for the fulfillment of their duties. Regarding the exchanged information, the receiving authority shall ensure the same level of confidentiality as the transmitting authority.
3. If the Digital Services Coordinator examines issues related to the competencies of the authorities of Article 5 of this document, it may request the opinion of the competent authority on a case-by-case basis regarding these issues.

Article 9

Reporting Suspicions of Criminal Offenses to the Cyber Crime Unit

The Cyber Crime Unit of the Hellenic Police is the competent law enforcement authority according to the provisions of Article 18 of the Act, which receives reports of suspicions of criminal offenses and processes data and information in the context of fulfilling its legal duties.

Article 10

Relations with Other Authorities

Public authorities not included among the competent authorities according to Article 5 of this document, particularly the Ministry of Development, actively cooperate with the Digital Services Coordinator to fulfill the purposes of this document and the Act, entering into relevant cooperation agreements where deemed necessary. In this context, they provide, upon request from the Coordinator, their assistance, including information deemed necessary for the fulfillment of the purposes of this document and the Act, particularly in managing complaints. The aforementioned authorities respond to written requests from the Coordinator for the provision of information and any kind of assistance within the deadline specified.

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he specifies in his request, in order to meet the deadlines set by the Act.

Article 11

Powers of the Digital Services Coordinator and the competent authorities

1. When required for the execution of the duties of the Digital Services Coordinator, the Hellenic Authority for Communication Security and Privacy (E.E.T.T.) has the powers of paragraphs 1, 2, and 3 of Article 51 of the Act concerning the behavior of providers of intermediary services and the enforcement of provisions falling within its jurisdiction. In this context, the Digital Services Coordinator:
 - a) May request, with a specific and justified request, information from providers of intermediary services, as well as any other person acting for purposes related to their commercial, business, or professional activities, who may reasonably be expected to know about the alleged violation, including organizations conducting the audits referred to in Article 37 and paragraph 2 of Article 75 of the Act. These persons shall provide the information without delay and in accordance with the timeline and level of detail specified by the Digital Services Coordinator. If no deadline is specified, the information shall be provided to the Digital Services Coordinator within twenty (20) working days from the submission of the request.

b) Its staff acts under the direction of its President and has, regarding providers of intermediary services, as well as any other person acting for purposes related to their commercial, business, or professional activities, the rights to collect data and conduct investigations as provided in Article 14 of Law 4070/2012 (A' 82).

c) If it finds that a provider of intermediary services does not comply with one or more provisions of the Act, it shall notify the provider of this finding and invite them within a specified deadline to present their views and comply with the Act.

d) With a specifically justified decision and after a prior hearing of the provider of intermediary services, conducted in accordance with the E.E.T.T. Hearing Regulation, it may take necessary, effective, and proportionate measures to ensure compliance with the Act, in accordance with subparagraphs a, b, and e of paragraph 2 and subparagraphs a and b of paragraph 3 of Article 51 of the Act, and impose a fine or periodic monetary penalty, in accordance with subparagraphs c and d of paragraph 2 of Article 51 of the Act and Article 17 of this document.

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e) In the event that any of the persons referred to in subparagraphs a and b of this paragraph, other than the provider of intermediary services, does not comply with a request for information or an inspection order, it may impose a fine or periodic monetary penalty, in accordance with Article 16 of this document, after a prior hearing, provided that the conditions mentioned in the second subparagraph of paragraph 2 of Article 51 of the Act are met.

f) In exceptional cases and when there are compelling indications that the violation of the Act constitutes an immediate and serious threat to public safety, public order, or public health or poses a risk of causing serious harm to recipients of intermediary services or other providers, it may take urgent temporary measures to address the situation before a final decision is made. The provisions of paragraph 6 of Article 138 of Law 4727/2020 (A' 184) apply accordingly for the taking of temporary measures.

2. When required for the execution of their duties under the Act, the competent authorities of Article 5 have the powers of paragraphs 1, 2, and 3 of Article 51 of the Act concerning the behavior of providers of intermediary services and the enforcement of provisions falling within their jurisdiction.

3. For the execution of the duties of the Hellenic Data Protection Authority (A.P.D.P.X.) as the competent authority under the Act and Article 5 of this document, the provisions of paragraphs 1 and 2 of Article 15 of Law 4624/2019 (A' 137) regarding the investigative powers it possesses apply accordingly.

4. For the exercise of the investigative powers of the National Council for Radio and Television (ESR) as the competent authority under Article 5, the provisions of Laws 2863/2000 and 4779/2021, as applicable, as well as the provisions of the Act, apply accordingly.

5. The Digital Services Coordinator serves as the central point for submitting complaints under Article 53 of the Act against providers of intermediary services alleging violations of the Act. The priority for examining complaints is assessed by the Coordinator based on the significance and impact of the alleged violation. Complaints that are manifestly vague or submitted abusively or anonymously, or that do not concern a probable violation of the Act, shall not be examined by the Coordinator and shall be archived, with the complainant being duly informed.

Article 12

Orders for action against illegal content

Judicial or public authorities ensure that orders for action issued against one or more elements of illegal content are

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intermediary service providers meet the requirements of paragraph 2 of Article 9 of the Act. If the order of a public authority does not comply with one or more of these requirements, the order shall be deemed null and void for the purposes of the Act.

Article 13

Orders for Providing Information

Judicial or public authorities ensure that orders for providing specific information issued regarding one or more specific individual recipients of the service meet the requirements of paragraph 2 of Article 10 of the Act. If the order of a public authority does not comply with one or more of these requirements, the order shall be deemed null and void for the purposes of the Act.

Article 14

Advisory Committee for Digital Services

1. An Advisory Committee for Digital Services is established at the Ministry of Digital Governance. The Committee serves as an advisory body on matters of digital services, and its operation does not in any way affect the independence of the Digital Services Coordinator and the competent authorities of Article 5 of this Act in the exercise of their duties based on the Act and this law.

In this context, the Committee:

a) is informed about developments in Union legislation on digital services and provides non-binding recommendations to the Ministry of Digital Governance, either spontaneously or upon request, regarding potential legislative initiatives that could contribute to the more effective implementation of the Act and this law, as well as the content thereof and generally legislative interventions on issues related to the field of digital services.

b) develops collaborations with other entities within the framework of its activities and for the more effective exercise of its responsibilities.

2. The Committee consists of nine (9) members, each appointed by the Hellenic Authority for Communication Security and Privacy (E.E.T.T.), the Hellenic Data Protection Authority (A.P.D.P.X.), the National Council for Radio and Television (E.S.R.), the Ministry of Digital Governance, the Ministry of Development, the Ministry of Justice, the General Secretariat for Communication and Information, the Cyber Crime Unit, and the National Cyber Security Authority.

The Committee is chaired by the member appointed by the E.E.T.T. The members of the Committee may be freely revoked by the bodies that appoint them. Decisions of the Committee are taken by a majority of the present members.

3. The Committee meets regularly at least every three months, upon invitation from the President, and exceptionally, upon invitation from the President or at the request of at least four (4) members.

Members are invited by the President in any suitable manner, and the invitation includes the agenda items. The Committee may also meet via videoconference.

4. The Committee may include, without voting rights, public officials and employees, all types of executives employed in the public sector, and private experts, provided they are invited by the Committee.

Article 15

Register of Intermediary Service Providers

1. The E.E.T.T., within six (6) months from the publication of this law, shall create and operate a Register of intermediary service providers (hereinafter referred to as the Register) in electronic form.

2. Providers of intermediary services that have their main establishment in Greece or whose legal representative resides or is established in Greece shall be registered in the Register within three (3) months from its operation, provided that in the latter case, they do not have an establishment in the Union but offer services in the Union, including Greece. Upon registration, a Register number is assigned by the E.E.T.T.

3. Registration in the Register requires the submission of a declaration of registration of the intermediary service provider by the obligated enterprise, without the need for an approval act from the E.E.T.T.

4.a) The Register of intermediary service providers shall include and maintain, at a minimum, the following information:

- Register number and date of registration in the Register
- Name and surname for natural persons or business name for legal entities
- Headquarters and address
- Contact details of a point of contact in Greece for communication with the competent authorities of the Member States, the European Commission, and the European Digital Services Council (email

address and Greek phone number)

- Contact details of a point of contact in Greece for crisis management (email address and Greek phone number)
- Contact details of a point of contact in Greece for communication with their service recipients (email address and Greek phone number)
- Official languages of communication with the points of contact, including Greek and one language that is widely understood by the largest possible number of citizens of the Union
- Provider's website address
- Categories of intermediary services provided

b) Additionally, for providers with their main establishment in Greece:

- Tax Identification Number (TIN)
- General Commercial Registry Number (GEMI), if available
- Details of the legal representative (identity card or passport number, residential address, TIN)

c) Additionally, for providers that do not have their main establishment in Greece but whose legal representative resides or is established in Greece, details of the legal representative:

c.1) For a natural person:

- Name and surname
- Identity card/passport number
- Residential address
- Tax Identification Number (TIN)

c.2) For a legal entity:

- Business name
- Headquarters and address
- Tax Identification Number (TIN)
- General Commercial Registry Number (GEMI)
- Details of the legal representative (name, surname, identity card or passport number, residential address, TIN)

5. Intermediary service providers shall update the Register for any modification of the information maintained in the Register immediately and no later than within

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ten (10) days. They request their deletion from the Registry in the event of cessation of their activity as providers of intermediary services or cessation of their legal representation in Greece.

6. A legal representative of an intermediary service provider whose authority to represent in Greece has been demonstrably terminated for any reason is entitled to request the deletion of their declared status from the Registry.

7. The information concerning the EETT registry number, the name, the registered office, the contact details with the public, and the website of registered intermediary service providers, whether natural or legal persons, is provided as public open data and is published on the EETT website.

CHAPTER III

MEASURES FOR THE IMPLEMENTATION OF THE ACT

Article 16

Sanctions

1. In the event of a violation of the provisions of the Act and this document, the Coordinator of Digital Services, or the competent authority referred to in Article 5, according to their jurisdiction, imposes fines and periodic monetary penalties on intermediary service providers under their jurisdiction, in accordance with cases (c) and (d) of paragraph 2 of Article 51 of the Act. The fines and monetary penalties are effective, proportional, and deterrent.

2. In making a decision regarding the imposition and amount of the fine, the following shall be duly considered and evaluated for each examined case:

- a) the nature, severity, and duration of the violation,
- b) the intent or negligence of the provider that caused the violation,
- c) any systematic or repeated non-compliance of the provider with the obligations it bears under the

Act,

d) the type, size, and nature of the provided intermediary service and the financial capacity of the provider,

e) any activity of the provider in multiple Member States,

f) the degree of cooperation of the provider with the competent authority to rectify the violation and limit its potential adverse effects.

3. The amount of the fine shall not exceed 6% of the annual global turnover of the relevant intermediary service provider for the previous financial year.

In particular, in the case of providing inaccurate, incomplete, or misleading information, failure to respond or correct inaccurate, incomplete, or misleading information, and non-submission to inspection, the fine shall not exceed 1% of the annual income or global turnover of the relevant intermediary service provider or the relevant person for the previous financial year.

4. In the case of imposing a periodic monetary penalty, it shall not exceed 5% of the average daily global turnover or income of the relevant intermediary service provider for the previous financial year.

5. The fines and periodic monetary penalties are imposed by a specifically reasoned decision issued by the Coordinator or the competent authority, after having previously provided the provider with the opportunity to express their views on the identified violations, orally or in writing, and in accordance with the provisions that define the sanctioning procedure for each competent authority. The decision to impose sanctions is communicated without delay to the concerned provider. Before this communication, the Coordinator or the competent authority does not disclose the decision or any part of it to any third party and in any manner.

6. The fines and periodic monetary penalties imposed by the Coordinator of Digital Services under this article are collected in the name and on behalf of the Coordinator and are remitted to them.

7. In cases of sanctions imposed by the Hellenic Data Protection Authority (A.P.D.P.X.) in the context of the implementation of the Act and this document, paragraphs 4 and 5 of Article 15 of Law 4624/2019 (A' 137) apply *mutatis mutandis*. Beyond the sanctions provided for in the above provisions, the A.P.D.P.X. may also impose a periodic monetary penalty in accordance with Article 51 paragraph 2 subparagraph (d) of the Act. The fines and periodic monetary penalties imposed by the A.P.D.P.X. in the context of the implementation of the Act and this document are collected in the name and on behalf of the A.P.D.P.X. For the above collection, the A.P.D.P.X., by decision of its President, opens a simple bank account under the account group 260 - Cash Management at the Bank of Greece, where the amounts of the fines and periodic monetary penalties imposed in the exercise of its powers, as provided by the Act, will be directly deposited by those liable.

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Article 17

Right to Judicial Appeal

1. Against the decisions of the Coordinator or the competent authorities of Article 5, which impose sanctions in accordance with Article 16, a substantive appeal may be filed before the Administrative Court of Appeal of Athens.

2. Against other individual administrative acts issued by the Coordinator or the competent authorities of Article 5, as well as regulatory decisions issued under the provisions of this law, a request for annulment may be filed before the Council of State.

3. The deadline for filing the request for annulment or the appeal, as applicable, and the filing itself do not suspend the execution of the contested decisions of the Coordinator or the competent authorities, unless, upon request of the applicant or the appellant, the court, by reasoned decision, suspends in whole or in part the execution of the act, in accordance with the applicable provisions.

4. For the admissibility of the discussion of appeals filed against the decisions of the Coordinator or the competent authorities of Article 5, before the Administrative Court of Appeal, which impose fines, the deposit of an amount equal to fifteen percent (15%) of the imposed fine is required to be submitted to the Coordinator, and in any case not exceeding two hundred thousand (200,000) euros, to the authority that imposed the fine.

5. Against the decisions of the Administrative Court of Appeal of Athens issued in accordance with

paragraph 1 of this article, a request for cassation may be filed before the Council of State.

Article 18

Reports

1. The Coordinator of Digital Services shall prepare an annual activity report for the previous calendar year by the end of June each year.
2. The annual report shall include, in addition to the information required under Article 55 of the Act, the following elements:
 - (a) Information on human and financial resources for the implementation of this law and the Act, including, in cases where fees have been imposed, the fees that have been collected.
 - (b) Number of violations of the Act identified
 - (c) Number and details of hearings
 - (d) Number and details of sanction enforcement procedures and other measures
 - (e) Decisions, regulations, and acts issued under the empowering provisions of Article 23 of this law.
3. For the purposes of paragraph 1, the competent authorities of Article 5 shall send to the Hellenic Authority for Communication and Post (EETT), by the end of February of each year, in the form specified by the EETT, the information referred to in Article 55 of the Act and in paragraph 2 of this article concerning the previous calendar year.
4. The annual report of paragraph 1 shall be communicated by the Coordinator to the European Commission, the Digital Services Council, and all the competent authorities of Article 5, and shall be published in a machine-readable format on the official website of the EETT, subject to the rules applicable under Article 84 of the Act regarding the confidentiality of information.

Article 19

Staff of the Coordinator of Digital Services

For the exercise of the duties of the Coordinator of Digital Services, which are assigned to it by the Act and this law, the EETT may establish a new Directorate by its decision, amending for this purpose Decision No. EETT 996/008/22.06.2021 (Government Gazette 3367/B'/2021), as in force, as well as any other relevant decision, and shall take all necessary actions for its timely and adequate staffing, applying the provisions mentioned in cases (a) to (c) of this article:

- (a) Fifteen (15) positions shall be established and added to paragraph 1 of Article 13 of Law 4070/2012 (Government Gazette A' 82/10.04.2012), distributed as follows:
 - i. Four (4) positions in the category of PE Administrative-Economic, specialty of PE Administrative Economic
 - ii. Two (2) positions in the category of TE Administrative-Accounting, specialty of TE Administrative-Accounting
 - iii. Six (6) positions in the category of PE Informatics, specialty of PE Informatics
 - iv. Three (3) positions in the category of PE Administrative-Economic, specialty of Legal
 - (b) The staffing needs of the National Telecommunications and Postal Commission, arising from the exercise of the duties assigned to it by the Act and this law, shall be fulfilled during the
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First application of the present law by analogy to the provisions of Article 31 of Law 4873/2021 (A' 248), concerning the mobility of employees in newly established services.

c. For the staffing of the E.E.T.T. for the exercise of the powers of this law and the Act, the E.E.T.T. may hire Special Scientific Personnel through the following procedure, by way of exception to the existing provisions:

- i. The E.E.T.T. announces the positions of Special Scientific Personnel with the required specialization and experience. The same announcement specifies the selection criteria as well as the procedure for filing objections.
- ii. A Special Committee of Experts, constituted by the E.E.T.T., after interviewing the candidates, recommends to the E.E.T.T. for their selection. The composition of the Committee must include one member of the A.S.E.P., as President, proposed by the President of A.S.E.P., at least one professor of the first grade University, and a secretary. The members and the secretary of the Committee are

compensated for their work, by decision of the E.E.T.T., according to the existing provisions. The related expense is borne by the E.E.T.T.

iii. The E.E.T.T., with a reasoned decision, selects the candidates who, in its judgment, possess the broadest possible experience and knowledge required for the position for which they are intended.

iv. The lists of the selected candidates with the necessary details are sent to the A.S.E.P. for validation.

v. In the event that the lists are not validated within twenty (20) days from the date of receipt, they are considered validated, and the E.E.T.T. proceeds with the hiring of the selected candidates.

Article 20

Coverage of expenses

The expenses of the E.E.T.T. for the implementation of the provisions of this law are covered by its revenues in accordance with Articles 16 and 21 of this law and Article 150 of Law 4727/2020 regarding usage rights fees.

Article 21

Fees

1. The Coordinator may impose an annual supervisory fee on providers of intermediary services that (a) have their main establishment in Greece or (b) their legal representative resides or is established in Greece, provided that they do not have an establishment in the Union but offer services in the Union, including Greece. This fee covers exclusively the cost of fulfilling the duties assigned to the E.E.T.T. according to this law and the Act.

2. The annual supervisory fee is imposed on providers of intermediary services in an objective, transparent, and proportional manner.

3. The Coordinator may choose not to apply a supervisory fee to providers of intermediary services whose total global or national annual turnover at the national level from activities falling within the scope of the Act and this law does not exceed a certain minimum threshold or whose activities do not reach a certain minimum market share or are of very limited geographical scope or provide specific categories of intermediary services.

4. For determining the amount of the supervisory fee, the E.E.T.T. may apply either a distribution method based on the total annual global turnover of the providers and/or the type of intermediary services they provide, or a flat-rate charge on them, or a combination of these.

5. The supervisory fee provided for in this article, as well as any other amount collected by the E.E.T.T. for any reason within the general powers conferred upon it by this law and the Act, shall be paid directly as revenue in the name and on behalf of the E.E.T.T. while being deposited in its bank accounts and collected in accordance with the Code of Collection of Public Revenues (K.E.D.E., Law Decree 356/1974, A' 90).

CHAPTER D'

AMENDING AND AUTHORIZING PROVISIONS

Article 22

Amendments to Law 4070/2012

1. At the end of paragraph (b) of Article 7 of Law 4070/2012 (A' 82), the phrase "and/or intermediary services, as defined in Regulation (EU) 2022/2065" is added, and paragraph (b) of Article 7 is formulated as follows:

"b) is a partner, shareholder, member of the board of directors, manager, employee, consultant, or individual or other business advisor, which operates

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in the fields of postal services, electronic communications, information technology, or personal data processing and/or intermediary services, as defined in Regulation (EU) 2022/2065."

2. In paragraph 1 of Article 9 of Law 4070/2012 (A' 82), after the phrase "postal enterprises," the phrase "as well as from intermediary services, as defined in Regulation (EU) 2022/2065" is added, and paragraph 1 of Article 9 is formulated as follows:

"1. The President, the Vice-Presidents, the other members of the E.E.T.T., as well as its staff, are

prohibited from directly or indirectly obtaining any benefit from electronic communications services, postal enterprises, as well as from intermediary services, as defined in Regulation (EU) 2022/2065, or from third parties directly affected by their activities."

3. In item b) of paragraph 2 of Article 9 of Law 4070/2012 (A' 82), after the phrase "processing of personal data," the phrase "or intermediary services, as defined in Regulation (EU) 2022/2065" is added, and item b) of paragraph 2 of Article 9 is formulated as follows:

"b) Becomes a partner, shareholder, board member, manager, employee, consultant, or individual or other business advisor, which operates in the fields of postal services, electronic communications, information technology, or personal data processing or intermediary services, as defined in Regulation (EU) 2022/2065. If the members of the E.E.T.T. acquire corporate shares or stocks of the aforementioned enterprises during their term of office through inheritance, they are obliged to refrain from exercising participation and voting rights in the governing, management, and control bodies of those enterprises until the end of their term. The same obligation applies to their spouses and children."

Article 23

Delegating Provisions

1. The E.E.T.T. may issue guidelines for the specification of details and the uniform application of Article 21 of the Act, regarding extrajudicial dispute resolution, taking into account both European and national practice.

2. The E.E.T.T. may issue guidelines for the specification of details and the uniform application of Article 22 of the Act, regarding reliable sources for marking illegal content, taking into account both European and national practice.

3. The E.E.T.T. may issue guidelines for the specification of details and the uniform application of Article 40 of the Act, regarding access and control of data, taking into account both European and national practice.

4. The E.E.T.T. may issue a complaint submission form and guidelines for regulating procedural issues and any necessary detail for the uniform application of Article 53 of the Act, regarding the right to submit a complaint, taking into account both European and national practice.

5. A Regulation of the E.E.T.T. specifies the conditions for imposition, the method of calculation, the manner and deadline for payment of the annual supervisory fee, as well as any other relevant detail necessary for the implementation of Article 21 of this Act.

6. A Joint Act of the Coordinator of Digital Services and the competent authorities of Article 5, after the agreement of their Plenaries, regulates bindingly and in detail every issue concerning their cooperation, and in particular a) the coordination of data and information collection and their exchange, b) the method of using information systems at the national level, and c) the process of receiving and transmitting complaints.

7. By decision of the Minister of National Economy and Finance, issued following a decision of the President of the A.P.D.P.C. and the submission of a relevant request by the A.P.D.P.C., the collection on behalf of the A.P.D.P.C. of fines and periodic monetary penalties imposed by it in the exercise of its powers based on the Act and this law is assigned to the services of the Tax Administration in case of non-payment to the bank account of the Authority, as provided in paragraph 7 of Article 16 of this Act.

CHAPTER E'

OTHER REGULATIONS WITHIN THE COMPETENCE OF THE MINISTRY OF DIGITAL GOVERNANCE

Article 24

Purpose

The purpose of this Chapter is:

Article 25

Subject

The subject of this Chapter is:

Article 26

CHAPTER F'
COMMENCEMENT OF EFFECT

Article 27

Commencement of Effect

The effect of this Act begins upon its publication in the Government Gazette.